

K.Cherrunni vs K.Nalini on 12 November, 2007

Author: Antony Dominic

Bench: Antony Dominic

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE ANTONY DOMINIC

&

THE HONOURABLE MR. JUSTICE P.D.RAJAN

MONDAY, THE 20TH DAY OF MAY 2013/30TH VAISAKHA 1935

Mat.Appeal.No. 369 of 2008 ()

AGAINST THE ORDER/JUDGMENT IN OP 230/2005 of FAMILY COURT,KOZHIKODE
DATED 12-11-2007

APPELLANT(S) :

K.CHERUNNI, S/O.LATE KELU,
58 YEARS, KUZHIMBATTIL HOUSE
THAZHEKKODE AMSOM AND DESOM, KOZHIKODE

BY ADV. SRI.P.V.KUNHIKRISHNAN

RESPONDENT(S) :

K.NALINI, D/O.LATE UNNIRAMAN,
48 YEARS, CHENNANTHODIKA HOUSE
THAZHEKKODE AMSOM DESOM, KOZHIKODE TALUK

R,R BY ADV. SRI.SUNNY MATHEW

THIS MATRIMONIAL APPEAL HAVING BEEN FINALLY HEARD ON 20-05-2013,
THE COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

acd

ANTONY DOMINIC & P.D. RAJAN, JJ.

Mat. Appeal No.369 of 2013

Dated this the 20th day of May, 2013

ORDER

ANTONY DOMINIC,J.

This appeal is filed against the order in O.P.No.230/2005 rendered by the Family Court, Kozhikode.

2. The appellant was the petitioner before the Family Court and he filed the petition against his wife invoking Section 13(i)(ia) of the Hindu Marriage Act. Pleadings show that the appellant married the respondent on 24.4.1977 and the parties are residing separately since 30.10.1996. In the meanwhile, among the various proceedings that were initiated by both against each other, the appellant filed O.P.No.542/1996 seeking divorce against the respondent with the allegation that she is a mental patient. That petition was dismissed by the Family Court on 8.10.1998.

3. It was subsequently that O.P.No.230/2005 was filed alleging mental cruelty and seeking divorce on that ground. The case of the appellant was that the respondent initiated various criminal cases against him, causing mental cruelty entitling him to get divorce.

4. The parties adduced evidence and on an elaborate consideration, the Family Court found that institution of criminal cases itself will not amount to mental cruelty, justifying an order of divorce.

5. We have heard the learned counsel for the petitioner as also the learned counsel appearing for the respondent and have gone through the records of the case.

6. As already seen, the only ground raised by the appellant to substantiate the plea of mental cruelty is that the respondent had initiated various criminal cases against him. It is true that the respondent has initiated criminal cases against him alleging offence U/S. 498A of IPC and also for offences U/Ss.406, 417, 418 and 420 of the IPC. However, even according to the appellant, the trial court did not come to a any finding that these cases were initiated to harass the appellant or that false allegations were raised against him. In any event, initiation of criminal cases by itself do not amount to mental cruelty to be urged as a ground for claiming divorce. Therefore, we are inclined to agree with the finding of the Family court that the appellant has not succeeded in establishing any ground to seek divorce as prayed for.

In the result, we confirm the finding of the Family Court and consequently, the appeal will stand dismissed.

ANTONY DOMINIC, JUDGE P.D. RAJAN, JUDGE.

acd